judicial review; (b) Burden lies on the Union Government to prove that the relevant material existed to justify the proclamation; (c) Article 74(2) is not a bar against the scrutiny of the material on the basis of which the President had arrived at his satisfaction; (d) If the proclamation issued by the President is held invalid, then notwithstanding the fact that it is approved by both the Houses of Parliament, it will be open for the court to restore the Legislative Assembly and the Ministry; and (e) Secularism is a part of the basic structure of the constitution and hence, the anti-secular acts of a State Government can lawfully be deemed to be a ground for the imposition of the President's Rule.

Impact of the Judgement: This judgement placed a check on the arbitrary exercise of power under Article 356 by the Centre for the purpose of imposing President's Rule in the States.

Vishaka Case (1997)

Name of the Case	: Vishaka vs. State of Rajasthan
Year of Judgement	: 1997
Popular Name	: —
Related Topic/Issue	: Sexual harassment of women at workplace
Related Article/Schedule	: 15 & 21

Supreme Court Judgement: It held that the sexual harassment of women at the workplace is a violation of Articles 15 and 21. It said that it is the duty of the employer or other responsible person in work-places or other institutions, whether public or private, to prevent sexual harassment of working women. It gave detailed directions on the subject, whose guidelines are to be strictly observed by all employees, public or private, until suitable legislation is enacted on the subject.

Impact of the Judgement: By laying down a set of guidelines (which came to be known as the 'Vishaka Guidelines'), this judgement filled the legislative vacuum on the subject. Till this time, there was no domestic law to address this issue except a few provisions of the Indian Penal Code. Later, the Sexual Harassment of Women at Workplace (Prevention, Prohibition and Redressal) Act, 2013 was enacted to provide protection against sexual harassment of women at workplace and for the prevention and redressal of complaints of sexual harassment.

Vineet Narain Case (1997)

Name of the Case	: Vineet Narain vs. Union of India
Year of Judgement	: 1997
Popular Name	: Jain Hawala case
Related Topic/Issue	: Autonomy and efficient functioning of CBI
Related Article/Schedule	: —